MUTUAL NON-DISCLOSURE AGREEMENT

Effective Date: November 15, 2026

This Mutual Non-Disclosure Agreement ("Agreement") is entered into by and between **Vertex Alpha Capital LLC** ("Vertex") and **Horizon BioLabs Inc.** ("Horizon"). Both parties wish to explore a potential strategic transaction and share proprietary business information.

---

1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means all non-public, proprietary information disclosed by one party ("Disclosing Party") to the other party ("Receiving Party"), whether orally or in writing, that is designated as confidential or reasonably should be understood to be confidential given the nature of the information.

2. EXCLUSIONS FROM CONFIDENTIALITY

Confidential Information shall not include information that: (a) is or becomes publicly known through no breach by Receiving Party; (b) was already known to Receiving Party prior to disclosure; (c) is independently developed without reference to Confidential Information; or (d) is received from a third party having the legal right to disclose such information.

3. STANDARD OF CARE & PERMITTED USE

The Receiving Party agrees to hold and maintain Confidential Information in strictest confidence using the same degree of care it uses for its own confidential information, but in no event less than reasonable care. Receiving Party shall use such information solely to evaluate the prospective business transaction.

4. TERM & DURATION OF OBLIGATIONS

This Agreement and discussions between the parties shall continue for a period of one (1) year. The obligations of confidentiality hereunder shall survive termination and remain in effect for a period of three (3) years from the date of disclosure.

5. GOVERNING LAW & JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to conflict of laws principles. The parties consent to personal jurisdiction in San Francisco County.